

24SMCP00281 24SMCP00281

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C08%2F18%2F2026

Source SHA-256: 82a54abe65257bab22d936ab7b4f167982df6083c9db58ad33a524e679847aca

Case Number: 24SMCP00281 Hearing Date: August 18, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

CITY OF CALABASAS,

Plaintiff,

v.

ROBERT GARNER HAHN JR., et al.,

Defendants.

Case No.: 24SMCP00281

Hearing Date: August 18, 2026

[TENTATIVE] order RE:

PLAINTIFF'S MOTION FOR

AN ORDER DECLARING IT THE

PREVAILING PARTY, FOR ATTORNEYS'

FEES, AND TO DISMISS THE

ACTION

BACKGROUND

This action involves the real property located at 23320 Dale Road, Calabasas, California (the "Property"). Plaintiff the City of Calabasas brought this action to abate the hazardous, nuisance conditions at the Property, which have been the subject of City enforcement efforts since at least 2010. In 2024, the Court appointed Blake C. Alsbrook ("Receiver") as receiver and authorizing him to take possession and control of the Property and to abate the unlawful conditions on the Property. The Receiver sought authority to sell the Property and to demolish it as the abatement method. The Court granted the Receiver's request.

This hearing is on the City's motion for attorneys' fees. The City argues it is the prevailing party because while the case did not progress to trial or any final resolution, the City obtained its objective of abating the conditions at the Property. The City seeks attorneys' fees and costs of \$48,699.46, pursuant to Health and Safety Code sections 17980.7(c)(11) and 17980.7(c)(11) and Calabasas Municipal Code section 1.18.020. The City also seeks a dismissal of this action without prejudice. There was no opposition filed as of the posting of this tentative ruling.

LEGAL STANDARD

Section 17980.7(c)(11) of the Health and Safety Code reads in relevant part: "the prevailing party in an action pursuant to this section shall be entitled to reasonable attorney's fees and court costs as may be fixed by the court."

Section 17980.7(d)(1) of the Health and Safety Code provides:

"(d) If the court finds that a building is in a condition which substantially endangers the health and safety of residents pursuant to Section 17980.6, upon the entry of any order or judgment, the court shall do all of the following:

(1) Order the owner to pay all reasonable and actual costs of the enforcement agency including, but not limited to, inspection costs, investigation costs, enforcement costs, attorney fees or costs, and all costs of prosecution."

Calabasas Municipal Code ("CMC") section 1.18.020 provides that "[a] prevailing party in any administrative, civil or equitable judicial action to abate, or cause the abatement of, a violation or public nuisance under this Code, or in any appeal or other judicial action arising therefrom, may recover reasonable attorney's fees[.]" It goes on to state that the City is the prevailing party "when an administrative or judicial determination is made or affirmed by which a person is found to be responsible for one or more activities, conditions or uses that constitute a violation or a public nuisance."

REQUEST FOR JUDICIAL NOTICE

The City requests judicial notice of (1) Judgment Pursuant to Stipulation, dated April 1, 2015, in the matter of City of Calabasas v. Robert Garner Hahn Jr., et al., Los Angeles Superior Court ("LASC") Case No. SC111766; (2) Order Determining Succession to Real Property, dated June 7, 2021, in the matter of Hahn, Robert Garner, Jr., LASC Case No. 20STPB05974; (3) Minute Order, dated November 6, 2024, in the matter of City of Calabasas v. Robert Garner Hahn Jr., et al., LASC Case No. 24SMCP00281; (4) Order dated November 20, 2024, in the matter of City of Calabasas v. Robert Garner Hahn Jr., et al., LASC Case No. 24SMCP00281; (5) Order dated January 10, 2025, in the matter of City of Calabasas v. Robert Garner Hahn Jr., et al., LASC Case No. 24SMCP00281; (6) Order dated February 19, 2025, in the matter of City of Calabasas v. Robert Garner Hahn Jr., et al., LASC Case No. 24SMCP00281; (7) Order dated September 15, 2025, in the

matter of City of Calabasas v. Robert Garner Hahn Jr., et al., LASC Case No. 24SMCP00281; (8) Calabasas Municipal Code § 1.18.020.

The Court grants the request as to (1) and (2) pursuant to Cal. Evid. Code section 452(d) which authorizes the Court to take judicial notice of "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States." The Court denies the request as to (3), 1(4), (5), (6) (7) as these are orders in this action, and it is unnecessary to seek judicial notice of orders in the same action. The Court also denies the request as to (7) as it is unnecessary to seek judicial notice of a statute or ordinance.

DISCUSSION

Section 17980.7, subdivision (c)(11) provides: "The prevailing party in an action pursuant to this section shall be entitled to reasonable attorney's fees and court costs as may be fixed by the court." Where a statute authorizing recovery of attorney fees applies, courts "have taken the approach that attorney fees recovery is governed by the fee-shifting statute itself. Here, section 17980.7 does not define the term "prevailing party."

If the particular fee-shifting statute does not define prevailing party, the California Court of Appeal has said that the trial court should "simply take a pragmatic approach to determine which party has prevailed. That is, the trial court would determine which party succeeded on a practical level, by considering the extent to which each party realized its litigation objectives." (Wohlgemuth v. Caterpillar Inc. (2012) 207 Cal.App.4th 1252, 1264.)

Here, there can be no serious dispute that the City achieved its practical objective. The City sought the appointment of a receiver to take full and complete control of the Property and to address the conditions which violated the City's ordinances. The Court ordered the appointment of a receiver and approved the receiver's actions in managing and ultimately selling the Property. Absent the petition and the Court's appointment of the receiver, Respondents would not have addressed the numerous code violations.

As the prevailing party, the City is entitled to "reasonable" fees and costs. In determining what is reasonable, the Court starts with the lodestar amount, which is the reasonably hourly rate multiplied by the time reasonably spent. A declaration by counsel is sufficient to establish the prima facie reasonableness of a fee claim. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Additionally, an attorney's itemized statement of fees and costs incurred is presumptively reasonable. (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 624.)

Here, the City has provided its legal invoices and a detailed description of the time spent and tasks performed by its attorneys. (Markus Decl., ¶ 20, Ex. A.) As reflected therein, the City's attorneys and staff spent a total of 185.3 hours performing services in this action. (Id., ¶¶ 21-22.) The time spent was reasonable and necessary given Respondents' failure and refusal to abate the conditions themselves, the City's motions for appointment of receiver, related injunctive orders, and the subsequent law-and-motion practice involving an unlawful occupant's motion for joinder and three ex parte applications seeking, among other things, a stay of proceedings, a stay of the writ of possession, and an order quashing the writ. These filings required the City's attorneys to spend substantial time litigating the matter and conferring with the Receiver.

Turning to the hourly rate, a "reasonable" hourly rate is the prevailing rate charged by attorneys of similar experience in the relevant community. (PCLM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The court may consider various other factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the attorney's area of expertise, and customary billing rates. (Flannery v. California Highway Patrol (1998) 61 Cal.App.4th 629, 632.) Here, the City's counsel charges the City \$225.00 per hour for attorney time and \$100.00 per hour for work performed by law clerks and paralegals. (Markus Decl., ¶ 19.) These rates are substantially below the market rates the City's counsel charges its non-governmental clients, which range from approximately \$350.00 to \$1,000.00 per hour. (Id.) Given counsel's qualifications, experience, and reduced municipal rates, the rates charged by the City's counsel in this matter are reasonable. (Id., ¶¶ 23-30.) 3.

The City also seeks attorneys' fees incurred in connection with its motion for attorneys' fees. A motion for attorneys' fees may include the time taken by the attorney in preparing the motion, replying to objections, and appearing for the hearing. (See *Excess Electronix v. Heger Realty Corp.* (1998) 64 Cal.App.4th 698.) The City's counsel spent 20.5 hours to prepare the fees motion and all accompanying papers and expects to spend four hours to review and analyze Respondents' opposition to this Motion, drafting reply papers, and attending the hearing. (Id.) As Respondents have not filed an opposition, the Court reduces the requested fees by 3 hours x \$225 which equals \$675.

The City also seeks costs of \$2,181.96. There is no support for the requested costs. Counsel's declaration does not itemize the requested costs. The motion indicates that the costs are specified in Exhibit A to counsel's declaration but Exhibit A appears to include only time entries. Accordingly, the Court cannot conclude whether the costs sought are reasonable, and therefore, denies the City's request for costs.

The City also asks that its petition be dismissed without prejudice. The City maintains that the nuisance conditions at the Property have been addressed, and there is no reasonable possibility it could recur as Respondents no longer have any interest in the Subject Property and the demolition work was completed. (Id.) It is unclear why the City has requested dismissal of the action without prejudice, versus with prejudice. The Court sees no reason why the action should not be dismissed with prejudice.

CONCLUSION AND ORDER

For the foregoing reasons, the Court GRANTS IN PART and DENIES IN PART Plaintiff's motion for attorneys' fees and costs. The Court awards fees and costs in the amount of \$45,842.50. The case is dismissed with prejudice.

DATED: August 18, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court